



## IMO MEPC 71 Meeting Summary

November 6, 2017

The Marine Environment Protection Committee (MEPC) of the International Maritime Organization met for its 71<sup>st</sup> session in London during 03-07 July 2017.

Liberia was represented throughout MEPC 71 in the plenary sessions and the working groups on the Reduction of GHG Emissions from Ships and Air Pollution, Energy Efficiency and Ballast Water Review Group.

### Ballast Water Management Convention

#### Amendments to implementation schedule for ships compliance with Regulation B-3

Noting the imminent entry into force of the BWM convention on 08 September 2017 and the discussions at MEPC 70 with regard to the implementation schedule set out in Regulation B-3, Liberia engaged with several other IMO Member States to develop a compromise proposal that was put forward to MEPC 71. The purpose of the compromise proposal was to provide a timely implementation schedule that phases-in the use of ballast water management systems (BWMS) that meet the D-2 standard and takes on board the need for the shipping industry to prepare for installations and to have type approved systems, which take into account the 2016 Guidelines (G8). It also recognized that a timely and predictable phase-in schedule would assist BWMS manufacturers, dockyards, classification societies and others in preparing for the entry into force of the Convention. With some minor modifications, the compromise amendments were approved and were circulated on 8 September 2017 under IMO **Circular Letter No. 3771** and will be considered for adoption at MEPC 72 in April 2018.

MEPC 71 also adopted **Resolution MEPC.287(71)** on implementation of the BWM Convention, noting that Parties to the Convention should implement the approved amendment regulation B-3 immediately after entry into force of the Convention in lieu of the Conventions current regulation B-3. The resolution also reaffirms the agreement reached at MEPC 68 regarding non-penalization of early movers that have installed ballast water management systems approved in accordance with the *Guidelines for approval of ballast water management systems (G8)*

(*resolution MEPC.174(58), subsequently superseded by resolution MEPC.279(70)*).

#### MEPC 71 also approved the following, inter alia, in relation to the BWM Convention:

- Draft *Code for approval of BWM systems* (BWMS Code) and sent to MEPC 72 for adoption.
- Draft amendments to Regulations A-1 and D-3 acknowledging the BWMS Code. These amendments were circulated on 8 September 2017, the date of entry into force of the Convention.
- *Guidance on Contingency measures under the BWM Convention*, with regard to the process of discharging non-compliant ballast water, **BWM.2/Circ.62**.
- Application of the *BWM Convention to ships operating in waters where ballast water exchange is not possible*, **BWM.2/Circ.63**.
- Draft amendments to regulations E-1.1.5, E-5.8 and E-5.9.1, regarding survey and certification. These amendments were circulated on 8 September 2017, the date of entry into force of the Convention.
- Adoption of the *2017 Guidelines for ballast water exchange (G6)*, **Resolution MEPC 288(71)**.
- Revised *Guidance on the entry or re-entry of ships into exclusive operation within waters under the jurisdiction of a single party*, **BWM.2/Circ.52/Rev. 1**.
- The manual: *Ballast water management – How to do it*.
- Adoption of the *2017 Guidelines for risk assessment under Regulation A-4 of the BWM Convention (G7)*, **Resolution MEPC.289(71)**.
- Agreed to establish an experience-building phase associated with the BWM Convention, noting concern within the industry regarding potential penalization during the implementation phase of the Convention for non-compliance and which is beyond the control of the shipowner or crew, **Resolution MEPC.290(71)**.

## Reduction of Green House Gas (GHG) emissions from ships

MEPC 70 approved the *Roadmap for developing a comprehensive IMO strategy on the reduction of GHG emissions from ships* (see IMO document MEPC 70/18/Add.1 – Annex 11). In accordance with that Roadmap, the first intersessional meeting of the working group on GHG (ISWG-GHG 1) was held on 26-30 June 2017 with the remit of developing a draft outline of the structure of the initial IMO strategy. Liberia is an active participant in the ISWG-GHG 1.

During MEPC 71 a draft outline was developed for the structure of the initial IMO Strategy on reduction of GHG emissions from ships, as follows:

- Preamble/introduction/context including emission scenarios
- Vision
- Levels of ambition
- Guiding principles
- List of candidate short-, mid- and long-term further measures with possible timelines and their impact on States Barriers and supportive measures, capacity building and technical cooperation; R&D
- Follow-up actions towards development of the revised Strategy
- Periodic review of the Strategy

The work on the IMO Strategy will continue at two additional intersessional meetings of the working group on GHG scheduled for October 2017 and April 2018

## MARPOL Amendments

### Revised Guidelines for the implementation of MARPOL Annex V

MEPC 71 adopted the *2017 Guidelines for the Implementation of MARPOL Annex V*, **Resolution MEPC.295(71)**, revoking the 2012 Guidelines.

The revised guidelines include:

- editorial changes
- a change to the definition of E-Waste by replacing the word 'product' with 'equipment'
- alignment with the Polar Code
- incorporation of substances that are harmful to the marine environment (HME) related to cargo residues

## Newly Designated NO<sub>x</sub> Tier III Emission Control Areas covering the North Sea and Baltic Sea – Annex VI

Further to the decision made at MEPC 70, the Committee approved amendments to Regulation 13 of MARPOL Annex VI, designating both the North Sea and the Baltic Sea as NO<sub>x</sub> Emission Control Areas (NO<sub>x</sub> ECAs), with an effective date of 1 January 2021, **Resolution MEPC.286(71)**.

Amendments were also adopted to Appendix V of MARPOL Annex VI concerning the information to be included in the bunker delivery note. Amendments to the information to be included in the BDN is aimed at addressing situations where the fuel oil supplied does not meet low sulphur requirements, but has been supplied to a ship which is using "equivalent means" (such as scrubbers) to reduce the SO<sub>x</sub> emissions of the ship in order to comply with MARPOL requirements.

## Air Pollution and Energy Efficiency

In addition to the specific work being undertaken on GHG emission, the Committee continued its work with regard to air pollution and energy efficiency, taking into consideration the further technical and operational measures required for enhancing the energy efficiency of shipping.

### Minimum propulsion power to maintain the maneuverability of ships in adverse conditions

Regulation 21.5 of MARPOL Annex VI stipulates that the installed propulsion power of ships to which the required Energy Efficiency Design Index (EEDI) applies shall not be less than "the propulsion power needed to maintain the maneuverability under adverse conditions". Concerns have been expressed regarding sufficiency of propulsion and steering abilities of ships to maintain their manoeuvrability in adverse conditions, if the EEDI requirements are achieved by simple reduction of the installed engine power. MEPC 68 had agreed to await the final outcome of research projects on the matter and that the full text of the draft revised 2013 Interim Guidelines would be submitted to MEPC 71. MEPC 71 agreed to continue discussion on level 2 assessment at MEPC 72, due to different opinions expressed on the adverse weather condition, etc. MEPC 71 agreed to extend the 2013 Interim Guidelines to EEDI phase 2, and invited interested Member Governments and international organizations to make every effort to further develop the draft revised 2013 Interim Guidelines and submit proposals to MEPC 72.

## MEPC 71 also concluded the following:

- The Draft best practice for fuel oil purchasers/users remains under consideration and discussions will continue, with a view to finalisation, at MEPC 72.
- Approved the draft amendments to Regulation 21 of MARPOL Annex VI regarding changes in the Required EEDI reference line parameter values of ro-ro cargo and ro-ro passenger ships, depending on their deadweight tonnage (DWT).
- Adoption of the *2017 Guidelines for administration verification of ship fuel oil consumption data*. **Resolution MEPC.292(71)**.
- Adoption of the *2017 Guidelines for the development and management of the IMO ship fuel oil consumption database*, **Resolution MEPC.293(71)**. Administrations may authorize an organization to receive the data from a ship, verify the data for compliance with the requirements, issue the Statement of Compliance, and submit the data to the Organization, and perform such other actions authorized by the Administration with respect to the IMO Fuel Oil Consumption Database. In every case, the Administration assumes full responsibility for all tasks conducted by the Administration or any organization duly authorized by it. All information collected will be anonymised prior to inclusion in the database and publication via a new module on the IMO's GISIS platform.
- Approval of the Submission of Data to IMO Data Collection System of Fuel Oil Consumption from a Ship not entitled to fly the Flag of a Party to MARPOL Annex VI. An **MEPC.1 Circular** will be issued in relation to this matter.
- Approval of a new output for the Consistent implementation of regulation 14.1.3 of MARPOL Annex VI, for the sub-committee on Pollution Prevention and Response (PPR) to further consider its work on the global sulphur cap prior to entry into force on 01 January 2020.
- Adoption of the *2017 Guidelines on addressing additional aspects to the NOx technical Code 2008 with regard to the particular requirements related to marine diesel engines fitted with Selective Catalytic Reduction (SCR) Systems*, **Resolution MEPC.291(71)**.
- Approval the draft Code for the transport and handling of hazardous and noxious liquid substances in bulk on offshore support vessels (OSV Chemical Code), prepared by PPR 4 and amended and approved by MSC 98, for submission and adoption to

the thirtieth session IMO Assembly in November 2017.

- Approval of the designation of the Philippines' Tubbataha Reefs Natural park (TRNP) as a Particularly Sensitive Sea Areas, **Resolution MEPC 294(71)**.

The next meeting of the Committee, MEPC 72, is scheduled for: 09-13 April 2018.

For further information please contact: [imo@liscr.com](mailto:imo@liscr.com)

## PROVISIONAL LIST OF RESOLUTIONS & CIRCULARS APPROVED BY MEPC 71

|                            |                                                                                                                                                                                                              |
|----------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>MEPC.286(71)</b>        | Amendments to MARPOL Annex VI (designation of the Baltic sea and the North Sea emission control areas for NOx tier III control and information to be included in the bunker delivery note)                   |
| <b>MEPC.287(71)</b>        | Implementation of the BWM convention                                                                                                                                                                         |
| <b>MEPC.288(71)</b>        | 2017 guidelines for ballast water exchange (G6)                                                                                                                                                              |
| <b>MEPC.289(71)</b>        | 2017 guidelines for risk assessment under regulation A-4 of the BWM convention (G7)                                                                                                                          |
| <b>MEPC.290(71)</b>        | The experience-building phase associated with the BWM convention                                                                                                                                             |
| <b>MEPC.291(71)</b>        | 2017 guidelines addressing additional aspects to the NOx technical code 2008 with regard to particular requirements related to marine diesel engines fitted with selective catalytic reduction (SCR) systems |
| <b>MEPC.292(71)</b>        | 2017 guidelines for administration verification of ship fuel oil consumption data                                                                                                                            |
| <b>MEPC.293(71)</b>        | 2017 guidelines for the development and management of the IMO ship fuel oil consumption database                                                                                                             |
| <b>MEPC.294(71)</b>        | Designation of Tubbataha reefs natural park as a particularly sensitive sea area                                                                                                                             |
| <b>MEPC.295(71)</b>        | 2017 guidelines for the implementation of MARPOL Annex V                                                                                                                                                     |
| <b>BWM.2/Circ.13/Rev.4</b> | Revised Methodology for information gathering and conduct of work of the GESAMP-Ballast Water Working Group                                                                                                  |
| <b>BWM.2/Circ.62</b>       | Guidance on contingency measures under the BWM Convention                                                                                                                                                    |
| <b>BWM.2/Circ.63</b>       | Application of the BWM Convention to ships operating in sea areas where ballast water exchange in accordance with regulation B-4.1 and D-1 is not possible                                                   |
| <b>BWM.2/Circ.52/Rev.1</b> | Guidance on entry or re-entry of ships into exclusive operation within waters under the jurisdiction of a single Party                                                                                       |
| <b>BWM.2/Circ.61</b>       | Guidance on methodologies that may be used for enumerating viable organisms for type approval of ballast water management systems                                                                            |
| <b>MEPC.1/Circ.xxx</b>     | Submission to the IMO data collection system of fuel oil consumption of data from a ship that is not entitled to fly the flag of a Party to MARPOL Annex VI                                                  |
| <b>MEPC.1/Circ.xxx</b>     | Unified interpretations of MARPOL Annex I                                                                                                                                                                    |